

Executive Engineer, Kanpur Electricity Supply Co. v. Presiding Officer, Consumer Grievance Redressal Forum

Allahabad High Court · Division Bench · 30 January 2018 · Writ - C No. 5047 of 2013 · **Writ against CGRF deposit-adjustment order disposed as infructuous.**

HEADNOTE

Kanpur Electricity Supply Company's writ seeking certiorari against a 23 November 2012 CGRF order (interim deposits to be adjusted towards future bills) was disposed of as infructuous by efflux of time. Only notices had issued in 2013; no stay was granted. Recall left open if a cause of action survived. The licensee's plea that an Ombudsman representation under s.42(6) EA 2003 / clause 7.10 UP Supply Code 2005 lies only at the consumer's instance was not decided.

FACTUAL SUMMARY

Kanpur Electricity Supply Company sought certiorari against a 23 November 2012 CGRF order directing that amounts deposited under an interim order be adjusted towards future bills. The licensee argued that an Ombudsman representation under section 42(6) of the Electricity Act, 2003 read with clause 7.10 of the U.P. Electricity Supply Code, 2005 lies only at the consumer's instance, leaving it without an alternative remedy. Notice issued in 2013 without stay. In 2018 none appeared for the respondents.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

infructuous writ against CGRF order

HOLDING

The Division Bench disposed of the licensee's writ against the CGRF's 23 November 2012 direction that amounts deposited pursuant to an interim order be adjusted towards future bills as having become infructuous by efflux of time, recording that only notices had issued and no interim order had been granted. Liberty was reserved to seek recall if any cause of action survived. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A LICENSEE MAY REPRESENT TO THE OMBUDSMAN AGAINST A CGRF ORDER UNDER S.42(6) EA 2003 READ WITH CLAUSE 7.10 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Recorded as the licensee's submission while issuing notice; never decided. ¶ 2

NOT DECIDED — VALIDITY OF THE CGRF DIRECTION THAT AMOUNTS DEPOSITED UNDER AN INTERIM ORDER BE ADJUSTED TOWARDS FUTURE BILLS

Writ disposed as infructuous without examining the Forum order on merits. ¶ 4